BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON

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OFFICE OF THE BOARD OF DIRECTORS
SCHOOL DISTRICT NO. 1J, MULTNOMAH COUNTY, OREGON
BLANCHARD EDUCATION SERVICE CENTER
PORTLAND, OREGON

JANUARY 24, 2005

The regular business meeting of the Board of Directors came to order at 6:31 p.m. on the above date at the call of Chairperson Wynde. There were present:

Julia Brim-Edwards
Derry A. Jackson, Sr.
Doug Morgan
Lolenzo Poe
Bobbie Regan
Dilafruz Williams
David Wynde

Suleima Cortez, Student Representative

Vicki L. Phillips, Superintendent
Jollee Patterson, General Counsel/Board Secretary
Julie Joel, Executive Assistant

Expenditures

The Superintendent RECOMMENDED adoption of the following items:

Numbers 3190 through 3192

Director Poe moved adoption of the above-numbered items. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no): Director Jackson absent from voting; Student Representative absent from voting.

Payment For Professional Services
Self-Insurance Funds
(Legal Services)

3190 RESOLVED, That authority be granted to pay the following professional services providers:

Payee	Description	Date	Amount	Fund
Vavrosky, MacColl, Olson & Pfeifer, PC	Defense of various Workers' Comp. Claims	11/01/04 through 11/30/04	$ 1,314.37	601/5540
Reinisch, Mackenzie, Healey, Wilson & Clark	Defense of various Workers' Comp. Claims	08/01/04 through 11/30/04	$13,891.18	601/5540
Mersereau & Shannon, LLP	Defense of various Liability Claims	11/01/04 through 11/30/04	$ 5,535.26	601/5540

(H. Franklin)

Settlement of a Tort Claim

3191 RESOLVED, That authority of $75,000 be granted in exchange for a full and final release on a tort claim in Des v. Portland Public Schools and in a form approved by General Counsel; and be it further

RESOLVED, That this expenditure be charged to the self-insurance fund, liability claim program 601-5540-25283-99999-565930. (*M. Anderson)*

Funding Authorization
Whitaker-Adams Site Planning

3192 WHEREAS, the Whitaker-Adams site was closed in 2001 and is no longer in use as an school; and

WHEREAS, The Whitaker-Adams Stakeholders Advisory Committee recommended to the Superintendent in 2003 that approximately 3.5 acres of the northern portion of the site be reserved for the potential future development of a new school; and

WHEREAS, Preliminary planning and schematic design for a school on this portion of the site is required to allow planning for the remainder of the site and for the future demolition of the existing school; and

WHEREAS, Schematic design development will allow for a condensed construction timeframe if a new school on the site is authorized; and

WHEREAS, Planning and schematic design costs are an estimated $100,000; therefore be it

RESOLVED, That $100,000 in reserves be used to fund these costs and expenses, with the replenishment of those reserves coming from the proceeds of the Washington High School site sale.

(P. Brown)

Other Matters Requiring Board Action

The Superintendent RECOMMENDS adoption of the following items:

Numbers 3193 through 3200

Director Poe moved adoption of the above-numbered items with the exceptions of Board Actions 3196, 3197, 3198 and 3199 which were voted on during the Committee of the Whole and Board Action 3195 which was pulled prior to voting. Director Williams declared a possible conflict of interest on Board Action 3194. The motion was put to a voice vote and passed unanimously (vote: 6-yes; 0-no): Director Jackson absent from voting; Student Representative absent from voting.

During the Committee of the Whole, Chair Wynde announced that Board Action 3195 was pulled (prior to voting).

During the Committee of the Whole, Director Regan moved adoption of Board Action 3196. The motion was put to a voice vote and passed unanimously (vote: 7-yes; 0-no) Student Representative voting yes, unofficial.

During the Committee of the Whole, Director Regan moved adoption of Board Action 3197. The motion was put to a voice vote and passed unanimously (vote: 7-yes; 0-no) Student Representative voting yes, unofficial.

During the Committee of the Whole, Director Brim-Edwards moved adoption of Board Action 3198. The motion was put to a voice vote and passed (vote: 5-yes, 2-no; Directors Jackson and Poe voting no); Student Representative voting no, unofficial.

During the Committee of the Whole, Director Brim-Edwards moved adoption of Board Action 3199. The motion was put to a voice vote and passed (vote: 5-yes; 1-no; Director Poe voting no); Director Jackson absent from voting; Student Representative absent from voting.

Expenditure Contracts that Exceed $25,000 Limit for Delegation of Authority

3193 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve payment for products, materials, supplies, capital outlay, equipment and services where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Portland Opportunities Industrialization Center	07-02-04 Through 06-30-05	Personal / Professional Services Contract Contract # PS 53393	Private School Funding under Title I	Fund 205 Dept 6986 Grant G0580	$18,750	$138,863	C Leonard
Partners on Demand	01-10-05	Purchase Order # 43647	School Catalogues, Event Programs, and Posters for “Celebrate Portland Schools” event.	Fund 205 Dept 5485 Grant G0427	$25,928	$25,928	B Gustafson
Step Forward Activities, Inc.	01-10-05 Through 01-09-06	Material Requirements Contract Contract # MR 53402	Provide remanufactured and OEM toner cartridges to the District on an as-needed basis.	Fund 101	$75,000	$75,000	D Matthews
GR Morgan Construction	01-01-05 Through 05-01-05	Small Construction Contract Contract # C 53390	Installation of play structure at Sacajawea Headstart	Fund 205 Dept 6303 Grant 0481	$6,100	$30,345	P Brown
Sax Arts & Crafts	03-01-05 Through 02-28-06	Material Requirements Contract Contract # MR 52628	Extend contract for an additional 12-month term for Art Supplies	Fund 101	$54,206	$176,506	D Matthews
The Urban League of Portland	01-10-05 Through 08-01-05	Personal / Professional Services Contract Contract # PS 53409	Academic coaching to lower achieving middle school students in the area of mathematics to assist the district in closing the achievement gap.	Fund 205 Dept 5497 Grant G0583 Dept 5443 Grant G0483 Dept 5404 Grant 0547	$110,000	$261,901	C Leonard

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Portland State University	01-07-05 Through 03-11-05	Personal / Professional Services Contract Contract # PS 53408	Concentrated study of recent trends in the curriculum and methodology of the subject area, at George Middle School	Fund 205 Dept 2156 Grant G0550	$9,000	$89,000	B Pruitt
Lewis & Clark College	09-01-04 Through 06-30-05	Personal / Professional Services Contract Contract # PS 53411	Instructor to collaborate with Franklin HS staff/administrators to improve the capacity of personnel to comprehensively meet academic needs of ELL students.	Fund 205 Dept 5404 Grant G0512	$20,000	$5,135	S Olczak
PBS Engineering and Environmental	12-5-05 Through 12-31-05	Personal/ Professional Services Contract Contract # PS 53412	Asbestos Contamination Investigation Services at 54 sites.	Fund 402 Fund 403 Dept 5591	$60,607	$194,585	P Brown
Open Meadow Alternative Schools	07-01-04 Through 06-30-05	Personal/ Professional Services Contract Contract # PS 53412	Title I funding to private schools for staff professional development, student supplies, upgraded computer software	Fund 205 Dept 6928 Grant G0580	$42,875	$307,852	C Leonard
Youth Progress Association	09-01-04 Through 08-31-05	Personal/ Professional Services Contract Contract # PS 53413	Title I funding to program serving Neglected or Delinquent Youth (Title I-D) tutoring, life skills, and education.	Fund 205 Dept 6942 Grant G0580	$83,240	$818,087	C Leonard
Green Rhombus Designworks, LLC	10-20-04 Through 04-29-05	Personal/ Professional Services Contract Amend #2 Contract # PS 53228	Added hours of web development and software engineering for the District's school choice application	Fund 205 Dept 5486 Grant G0427	$29,640	$81,850	S Robinson

Contractor	*Term of Service*	*Type of* Contract	*Description of Services*	*Fund/ Dept. ID. #*	*Amount*	*Vendor Total*	*Resp. Admin.*
Plato Learning, Inc.	01-25-05 Through 06-30-05	Purchase Order	Software licenses for Columbia HS; curricular material for math, language arts, GED; staff training.	Fund 101 Dept 5414	$33,000	$65,000	S Robinson
Portland Impact	07-01-04 Through 06-30-05	Personal/ Professional Services Contract	Portland Impact will act as the lead agency for Fernwood and Sellwood MS in alignment with the school-aged policy framework in the development and implementation of the SUN Community School model at each site.	Fund 205 Dept 5407 Grant G0600	$160,000	$174,999	C Leonard
Perseverance Strategies	01-25-05 Through 01-24-06	Personal/ Professional Services Contract	Provide government relations and lobbying services for 2005 legislative session	Fund 101 Dept 5406	$94,500	$94,500	B Gustafson
Programming and Consulting Services, Inc.	09-16-04 Through 03-31-05	Personal/ Professional Services Contract Amendment #1 Contract # PS 53173	Added hours of project management services for system installation and network infrastructure projects districtwide.	Fund 101 Dept 5581	$20,016	$368,976	S Robinson
TEKsystems, Inc.	01-25-05 Through 07-29-05	Personal/ Professional Services Contract Contract # PS 53428	PeopleSoft Financials application development and support services	Fund 101 Dept 5581	$87,580	$588,093	S Robinson

Revenue Contracts that Exceed $25,000 Limit for Delegation of Authority

3194 WHEREAS, Pursuant to Board Policy 8.90.010 Contracts, School Board approval is required to enter into and approve revenue where the total amount reaches $25,000 or more per contractor; and

WHEREAS, That such contracts are listed below and have reached or exceeded $25,000 per contractor; therefore be it

RESOLVED, That the Superintendent recommends that these contracts be approved and authorization granted to the Deputy Clerk to enter into agreements in a form approved by Counsel for the District:

Contractor	*Term of Service*	*Description of Services*	*Fund/Grant/ Dept. ID. #*	*Amount*	*Resp. Admin.*
Portland State University	10/01/04 through 06/01/06	Buckman Elementary School to participate in FEED, a garden-based learning as well as to provide healthy, nutritious, school-grown food for student diets .	G0605	$8,000	J. Bryant
Portland State University	10/01/04 through 06/01/06	Lewis Elementary School to participate in FEED, a garden-based learning as well as to provide healthy, nutritious, school-grown food for student diets.	G0605	$8,000	J. Bryant
Portland State University	10/01/04 through 06/01/06	Edwards Elementary School to participate in FEED, a garden-based learning as well as to provide healthy, nutritious, school-grown food for student diets.	G0605	$8,000	J. Bryant

3195 **PULLED PRIOR TO VOTING.**

Adoption of Board Policy on Reimbursement of Expenses- Board of Directors

3196 RESOLVED, That the following Board Policy 1.40.080-P Reimbursement of Expenses - Board of Directors is adopted:

Board Members serve without compensation. However, Board members shall be reimbursed for reasonable and necessary expenses actually incurred in the conduct of Board business within the budget allocation for such expenses.

I. Expense Reimbursement Procedures

(1) The Board will annually review the budget for Board expenses and establish expenditure guidelines during the budget process. The Board may set an annual maximum amount to be allocated (in total or per individual) for reimbursing Board members for costs incurred when conducting official District business.
(2) Each Board member will annually select one of the two methodologies for reimbursement: (a) Annual Expense Stipend, or (b) Reimbursement Based on Actual Original Receipts.
(3) Expenses related to Attendance at Board-approved State and National Meetings, Office Support, and Reimbursements for Use of Personal Auto will be charged to the Board's department budget and, while subject to overall budget constraints, are not charged to the individual Board member's allotment. All other reasonable expenses incurred by Board members in fulfilling their duties and responsibilities on behalf of Portland Public Schools are subject to this policy.
(4) All expenditures related to out-of-town travel by Board members funded by the Board office budget must have prior authorization by the Board leadership. For out-of-town travel funded by any other budget or funding source, Board leadership must be notified before the trip is scheduled.

II. Attendance at State and National Meetings

(1) The Board recognizes the benefits derived by the school system through membership in various associations of school boards and from the attendance of board members at state and national meetings, which deal with school affairs.

(2) Board members who hold, with Board leadership approval, official positions in such organizations shall be authorized to attend meetings of such organizations with prior Board leadership approval. Budget limitations may impact the ability of Board members to attend out-of-town meetings. In addition, Board leadership may designate delegates to various conventions and meetings as may seem desirable.

(3) Requests by individual board members to attend such meetings as Board representatives shall be acted upon by the Board leadership. Board members attending such meetings according to the above guidelines shall be regarded as carrying out Board business.

(4) A Board member who requests reimbursement for costs associated with attendance at a meeting or conference shall obtain approval for such reimbursement from the Board chair or his or her designee in advance of the meeting or conference.

(5) When requested, Board members attending such meetings at district expense will make a report to the Board of meeting highlights.

III. Out-of-Town Travel

(1) Authorization. Reimbursement for travel-related expenses, whether for Attendance at State and National Meetings (in accordance with Section II above) or for other purposes, will be authorized when the member informs Board leadership of his/her purpose, and the travel is related to pending business of the Board or a Board committee to which the member is assigned.

(2) Covered Expenses. Authorized Board travel expenses shall be limited to transportation, meals, lodging, incidental expenses and conference fees, if applicable. Reimbursement for alcoholic beverages and entertainment is not allowed.

(3) Rate of Reimbursement. The rate shall be the same as approved for district personnel, as defined in the Administrator's Manual. Only reimbursement for actual expenses paid and documented with itemized original receipts will be allowed. Board members may be reimbursed for travel-related meals at the then established District per diem rate or may submit actual itemized original receipts for meals.

IV. Office Support

(1) To assure that each Board member is equally equipped to conduct the business of the Board, any Board member may be provided, if so required, the use of hardware and software for the efficient processing of Board business. The costs of internet connections to access the District's web pages and e-mail system are reasonable expenses to carry out Board business and may be reimbursed. A telephone and telephone line will be provided to all Board members. Otherwise, use of personal phone lines and personal cell phones for District business are not reimbursable under District policy. The District does provide cell phones at District expense for Board member use for conducting the business of Portland Public Schools. Personal use of such cell phones is not permitted.

V. Reimbursement for Use of Personal Auto

A Board director, who regularly uses his/her automobile in the business of the district, may be compensated for this usage in accordance with the requirements and procedures set forth for district personnel.

(1) Direct Reimbursement for Actual Miles Traveled
Authorization for use of personal automobiles on district business shall not be granted until there is, on file in the Risk Management Office, appropriate proof of proper car insurance at the minimum levels required by Oregon law. A Local Mileage Reimbursement Request form should be completed and signed by the Board member and submitted to the Board Chair or his or her designee for approval, who will then forward the request to the Office of Board Services for processing. Mileage is reimbursed at the IRS rate in effect when the miles were driven.

VI. Methodologies for Reimbursement – Annual Expense Stipend

(1) Board members may choose to receive a lump sum stipend as reimbursement for expenses incurred when conducting District business for a school year. The amount of such stipend will be determined each year by the Board as part of the budget process.

(2) Board members choosing this methodology for reimbursement will receive a corresponding Form 1099 from the District each calendar year, since such a stipend is reportable as income and fully taxable, unless the amount of the stipend is below the IRS minimum.

(3) Board members choosing this methodology for reimbursement may not be issued a District procurement card.

VII. Methodologies for Reimbursement – Reimbursement Based on Actual Original Receipts

(1) Board members choosing this methodology will follow the procedures for expense reimbursement established for District staff.

(2) Expense reports must be accompanied by original itemized receipts and submitted to the Board Chair or the Board member designated to approve Board expenditures, who will then forward the expense report to the Office of Board Services for processing.

(3) Procurement cards may be issued to Board members choosing this methodology and are subject to this policy.

(4) Reimbursement requests will be honored up to the maximum annual amount allocated and approved by the Board for such purposes.

Legal Reference: Legal References: ORS 244.020 (15); ORS 244.040 (1)(a); ORS 332.018 (3); Oregon Government Standards and Practices Commission Advisory Opinion 93-A-1007 (November 18, 1993); Administrative Regulation 1.40.081, Guidance in Arranging Travel and Reporting Expenditures. ORS 332.107, ORS 332.105(2); ORS 332.107, ORS 244.0

Adoption of Board Policy on Student Enrollment & Transfers

3197 RESOLVED, That the following Board Policy 4.10.051-P Student Enrollment and Transfers is amended.

I. Policy Purpose

The purpose of this policy is to provide equal access to educational options for all students through an open, fair and accessible process and to promote equity and diversity in student transfers and admissions through alignment with the Educational Options Policy (6.10.022-P). The policy furthers the Student Achievement Policy (6.10.010-P), the district's policy to eliminate barriers to educational attainment (2.10.010-P), other district policies and state and federal requirements.

II. General Policy Statement

All Portland Public School students have the right to attend their neighborhood school. All students also have the right to request a transfer to attend any grade- appropriate school or program in the district. The Board is committed to families and students as the primary decision-makers for their choice of educational options. The district has the responsibility, through its centralized coordination of information, outreach, and support services, to provide families and students with information and advice that will enable families and students to make informed decisions about their choice of educational options.

III. Definitions

(1) School and student terms

(a) **Neighborhood school.** A school serving a designated attendance area and as defined in 6.10.022-P .

(b) **Focus option.** A separate school or program structured around a unique curriculum or particular theme and as defined in 6.10.022-P.

(c) **Transfer school.** The school to which a student has transferred.

(d) **Transfer student.** A district student attending a school other than his/her neighborhood school.

(e) **Resident student.** A student who is a resident of the Portland Public School district.

(f) **Nonresident.** A student from another district attending a PPS district school on inter-district transfer.

(g) **Sibling.** Children with the same parent or supervising adult living together at the same address.

(2) Admission and transfer terms

(a) **Transfer:** A formal request by a district family for a student to attend a school other than their neighborhood school or to return to their neighborhood school. There are two types of transfers:

(A) **On-time transfers:** a request to transfer by a designated deadline. On-time transfers are based on space availability and preferences.

(B) **Petition transfers:** a request to transfer after the designated deadline. Petition transfer requests require extraordinary circumstances to be granted.

(b) **Extraordinary circumstances:** The documented basis for school reassignments after the transfer deadline.

(c) **Enrollment:** The process for accounting for students in schools.

(d) **Feeder pattern:** A designated path for students to advance from one school grade grouping to another.

IV. Policy Scope

This policy does not apply to alternative education placements or charter school admissions. The district also shall be in compliance with all federal and state laws and regulations regarding student enrollment and transfers.

V. Admission

(1) **By area of residence.** Students have a right to attend the neighborhood school where they reside with their parent or supervising adult. This right extends to students returning to their neighborhood school with an on-time transfer request and to families with students new to the district.

(2) **By transfer.** All students have the right to request a transfer to a school or program other than their own assigned neighborhood school.

(a) A transfer request to a different neighborhood school is granted based on an on-time transfer request, space availability and preferences.

(b) A transfer request to a focus option is granted based on an on-time transfer request, space availability, admission criteria if any and preferences.

(c) Petition transfers are granted based on extraordinary circumstances.

(3) **Admission criteria**

(a) Admission criteria to any District school or program shall be the same for neighborhood and transfer students.

(b) Admission criteria shall be clear, objective and directly related to the educational goals of the option and the district. A school or program may require the family and student to indicate an understanding of program expectations prior to enrollment.

(c) Middle and high school focus options may have admission criteria as specified in the operations plan required in 6.10.022-P.

(d) Elementary focus options shall have no admission criteria except for language criteria for dual language immersion and late entry for language immersion options.

VI. Enrollment

(1) Students shall remain in the same program or school in which they are enrolled for the school year, except in cases of extraordinary circumstances. Schools shall collaborate with families, students and staff to meet the needs of students for that school year.

(2) Students enrolled in a transfer school do not have to reapply until completion of all grades in that school.

(3) Upon completion of a school grade grouping, students are enrolled in their neighborhood feeder pattern school, except as provided in (4) and (5) below. Students who want to attend a school other than their neighborhood school shall follow the admission procedures in Section V.

(4) Students admitted to a focus option that continues from one school grade grouping to another do not need to reapply for admission during these transitions except as provided in the focus option plan of operations.

(5) Students enrolled in a curriculum that includes different school grade groupings may enroll in the school with the higher grade grouping after completion of the previous grade grouping.

VII. Preferences

(1) Students who are residents of the district shall be given preference for admission to all district schools and programs.

(2) If on-time transfer requests exceed available spaces and the student meets admission criteria, if any, the following preferences determine priority placement in the following order:

(a) For neighborhood schools, neighborhood students. For focus options, students continuing from their previous school grade grouping.

(b) Students required by state or federal law or other district policy to receive priority.

(c) A student whose sibling is enrolled at the same time in the student's first choice elementary, middle school or high school or program that includes other school grade groupings.

(d) Resident students who have submitted an on-time transfer request.

(e) Nonresident students who have submitted an on-time transfer request, with those currently enrolled in Portland Public Schools having priority over students new to the District.

(3) A focus option may make special provision in its Board-approved plan of operations for admitting students from particular attendance areas.

VIII. Student Transfer Process

(1) Student transfer decisions shall be facilitated by the administrator assigned to coordinate student transfers.

(2) The superintendent shall establish protocols and procedures, including deadlines and an appeals process, for on-time and petition transfers and for inter district transfers.

(3) The superintendent shall establish a process for determining if space is available in a particular school or program.

(4) The superintendent shall establish a process for admitting students by a centrally administered lottery for students who submit an on-time transfer request and meet admission criteria, if any, and there are more applicants than available space.

(5) To support overall district goals and equal educational opportunities for all students, the lottery process also shall include factors as needed to promote equity and diversity in student admissions. The factors shall be based on the district's policy to eliminate barriers to educational attainment (2.10.010-P) and the Student Achievement Policy (6.10.010-P). The factors and process for how they shall be weighted in the lottery process shall be approved by the Board.

(6) The wait list established for a District school or program shall be randomly determined by the lottery, incorporating preferences and weighting as provided in this policy.

IX. Non-Discrimination

(1) All schools and programs offered by the district shall be open to all students without discrimination based on any factors provided for by state and federal laws and regulations and as provided in 1.80.020-P.

X. Policy Implementation and Effective Dates

(1)The superintendent shall develop administrative directives to implement this policy and a plan to transition to the new policy.

(2) The superintendent's transition plan shall include:

(a) allowing a preference for siblings of children of those families with children currently or formerly enrolled in a focus option that has had a written policy that explicitly provides for a preference for all past and present siblings. This exception to Section VII (2)(c) shall apply only to those families with a written commitment for this sibling preference prior to August 26, 2002 and shall end for admissions to said focus options for the 2008-2009 school year.

(b) allowing a one year transition for currently enrolled transfer students continuing to the next school grade grouping in their transfer feeder pattern for the 2004-05 school year, with full implementation of this policy for these students in school year 2005-06.

(3) With the exception of Section X (2)(a) and (b), this policy shall be implemented for the school year 2004-05.

Legal References: History: Approved 5/12/03

Victory Middle School
Charter School Application

3198 WHEREAS, Challenge 2000, Inc. submitted an application for Victory Middle School pursuant to Chapter 328 of the Oregon Revised Statutes to establish a grades 6-8 public charter school; and

WHEREAS, The application has been evaluated according to state law and the Portland Public Schools Charter Schools Application Review Criteria and Board Policy; and

WHEREAS, Staff of the school district thoroughly reviewed the application and rated it "Does Not Meet" in three of six sections in the district charter application, recommended that it be denied, and the applicant received a copy of the staff review; and

WHEREAS, A Board member conducted an onsite visit at the Victory Middle School located at the Blazer's Boys and Girls Club; and

WHEREAS, The applicant received a hearing on January 13, 2005 before the Board's Educational Options and Professional Development committee during which the applicant had an opportunity to present the program and respond to the staff review and Board members' questions; and

WHEREAS, The Board's Educational Options and Professional Development committee members critically assessed the application and deliberated on the hearing, the site visit, and the documentation, and based on that voted to not recommend the application at the January 18, 2005 committee meeting; and

WHEREAS, The proposal does not meet the minimum requirements in the areas of Educational Program, Support for Learning, and Financial, Business and Organizational Plan; and

WHEREAS, In its first 18 months of operation as a state sponsored charter school enrollment dropped by approximately 40%; student retention rates are approximately 35%; and

WHEREAS, The applicant has made a reasonable case that enrollment decline might have been due to negative publicity, yet, there is no evidence at present that shows an increase in overall enrollment nor at the sixth grade entry level: as of November 2005, there were only 17 sixth grade students; and

WHEREAS, The applicant has been provided with documentation detailing reasons the application does not meet Portland Public School District's criteria for authorization as a charter school, and copies of the staff report and Board's committee documentation with reasons for denial are on file in the District Office; and

WHEREAS, Reasons for denial include:

- Lack of evidence indicating sufficient demand for the proposed program, as evidenced by the low 6th grade enrollment rate.
- Lack of evidence of sustainability, as particularly evidenced by low retention rate from 6th grade to 7th grade.
- Lack of evidence of sustained improvement in student achievement.
- Inadequacy of budget based on assumptions of increases in state school funding that are not supported by current gubernatorial and legislative budget proposals.
- Concern that based on enrollment data the community in which the school will be located cannot support an additional middle school option of the size proposed; therefore be it

RESOLVED, That the charter school application submitted for Victory Middle School be denied. *(M. Kilcrease/S. Kosmala)*

Portland International Middle and High School
Charter School Application

3199 WHEREAS, The Portland International Middle and High School submitted an application pursuant to Chapter 328 of the Oregon Revised Statutes to establish a public charter middle and high school; and

WHEREAS, The application has been evaluated according to state law and the Portland Public Schools Charter Schools Application Review Criteria and Board Policy; and

WHEREAS, Staff of the school district thoroughly reviewed the application and rated it "Does Not Meet" in four of six sections in the district charter application, recommended that it be denied, and the applicant received a copy of the staff review; and

WHEREAS, The applicant received a hearing on January 11, 2005 before the Board's Educational Options and Professional Development committee during which the applicant had an opportunity to respond to the staff review and Board members' questions; and

WHEREAS, The Board's Educational Options and Professional Development committee critically assessed the application, deliberated on the hearing and documentation, and based on that voted on January 18, 2005 to recommend denial of the application; and

WHEREAS, The modified proposal does not meet the minimum requirements in the areas of Educational Program; Support for Learning; and Financial, Business, and Organizational Plan; and

WHEREAS, The applicant was provided documentation of detailed reasons the application does not meet Portland Public Schools criteria for authorization as a charter middle and high school and the applicant was given copies of the staff report and the Board's committee documentation with reasons for the non-recommendation, all of which are on file in the District office; and

WHEREAS, Reasons for denial include:

- Lack of evidence of program design and academic content congruent with the needs of all students including those who have not had exposure to multiple languages at the elementary level;
- Lack of evidence that the proposal could adequately meet the needs of low achieving students, non-native speakers of English, or students with disabilities;
- Inadequacy of budget in the area of providing a development plan to meet significant fundraising expectations, which increase to an annual total of $500,000 in the third year, and which equate to $1,500-$2,000 per student annually throughout the period of the proposed contract;
- Lack of evidence of the program's financial sustainability;
- Impact of a language immersion program and an international baccalaureate program on the District's present programs based on proposed location;
- Lack of commitment from proposed partners and the changing and uncertain status of the degree of reliance upon initially significant partner(s); therefore be it

RESOLVED, That the charter school application submitted for Portland International Middle and High School is denied by the Board. *(M. Ki*lcrease/*S. Kosmala)*

2005/2006 Budget Process Calendar

3200 RESOLVED, That pursuant to ORS 294.396 the Board of Directors of School District No. 1J, Multnomah County, Oregon hereby adopts the 2005/2006 Budget Calendar as follows:

February	
15 (at the latest)	District notifies the TSCC regarding consideration of a local option and/or capital bond proposal. (Must occur at least 30 days prior to submission of notice of measure election to county clerk for May election)
TBA	Public Hearing by TSCC on local option/capital bond proposals
26	Publish notice of hearings on Proposed Budget (1st notice) (2nd notice March 5) (5-30 days prior) (ORS 294.401)
March	
14	Superintendent presents Proposed 2005-06 Budget (ORS 294.396)
14-18	Budget Office publishes and distributes school staffing allocations to the schools
17 (At the latest)	CFO Submits Notice of Local Option Levy to County Clerk (March 17 is deadline for submission of notice of Local Option Levy measure election to county clerk for May ballot (ORS 255.085(1)N)
21-25	*Spring Break, Schools Closed*
28	Public hearing on proposed budget [CBRC presents Budget recommendations (tentative)] – Westside Site TBA
April	
6	Public hearing on proposed budget – Eastside Site TBA
11	Public hearing on proposed budget -- BESC [Board Finance, Audit, and Operations Committee presents recommendations]
25	Budget Committee formally approves budget for all funds and sets maximum tax levy(ies) for submission to the TSCC (ORS 294.406 (1))
May	
13	Budget Office submits Approved budget and required Board resolutions to TSCC (ORS 294.635)
17	May Election
30	*Memorial Day, District Closed*
June	
1 (Approx.)	Budget Office publishes notice of TSCC Hearing and Financial Summary (5-30 days prior) (ORS294.421)
TBA	TSCC conducts public hearing on 2005/06 Approved Budget (All Funds) (ORS 294.640)
27	Board adopts the 2005/06 budget, and through resolution declares the tax limitation category into which the tax is to be placed. (All Funds) (ORS 294.435(1))
July	
15	Budget Office certifies intent to impose a tax on property with counties (ORS 294.555)

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DAVID WYNDE	LYNN WARD
CHAIRPERSON, BOARD OF DIRECTORS	DEPUTY CLERK